

The complaint

Mr S and Mrs T complained that Intact Insurance UK Limited ("Intact") unfairly declined their claim for roof damage and avoided (treated it as though it never existed) their home buildings insurance policy.

I'll refer to Mr S for ease.

What happened

Mr S said he agreed an insurance policy with Intact in September 2021. In 2025 he claimed for repairs required to his roof. The claim was declined and Intact avoided his policy. Mr S said the business told him he hadn't disclosed a claim from 2016. This related to cracking to the front elevation of his property caused by tree roots.

Mr S said the questions he was asked when taking the policy were ambiguous. Additionally he said the damage from 2016 was minor and a certificate of structural adequacy was provided. Mr S said the cracking was not material to the roof damage and complained to Intact that it had treated him unfairly.

In its final complaint response Intact told Mr S that he was asked when taking out his policy if his home had ever suffered from subsidence. He confirmed it hadn't, which was inaccurate. Had it known about this issue it confirmed it would not have offered cover at all. Because of this it maintained its decision to decline Mr S's claim, and avoid his policy back to inception in September 2021.

Mr S didn't accept this outcome and referred the matter to our service. Our investigator didn't uphold this complaint. She agreed with Intact that Mr S had misrepresented the information he was asked to provide. She didn't think it treated him unfairly when it declined his claim and avoided his policy.

Mr S didn't agree with our investigator's findings and asked for an ombudsman to consider his complaint.

It has been passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so I'm not upholding Mr S's complaint. Let me explain.

The relevant law in this case is the Consumer Insurance (Disclosure and Representations) Act 2012 (CIDRA). Under CIDRA Mr S must take reasonable care not to make a misrepresentation when taking out insurance. If Mr S doesn't do this, CIDRA allows an insurer to take certain actions, assuming the misrepresentation is a qualifying one. A qualifying misrepresentation is where the insurer would not have provided cover at all, or it would only provide cover under different terms.

To understand whether Mr S made a misrepresentation I've reviewed the questions he was asked when he applied for his policy online using a comparison website.

During his application Mr S was asked to confirm that the following information was correct:

"The home you wish to insure is NOT:

- *Showing any sign of or ever had any damage caused to it by subsidence, landslip or heave."*

I think this statement is clear. I don't accept Mr S's comments that it was ambiguous.

Intact has shown that Mr S responded to confirm this information was correct. Mr S does not dispute this. In his submissions he explained that he answered as he did because he didn't consider his home had suffered from subsidence. He said this was because no underpinning or major works were required. Mr S also commented that a certificate of structural adequacy had been provided.

I've read the certificate of structural adequacy Mr S provided with his submissions. In this certificate the engineer stated that damage to the property was caused by *"clay shrinkage subsidence exacerbated by water extraction from tree roots"*.

Based on this evidence I think Mr S did make a misrepresentation. The engineer specifically refers to subsidence at the property. Mr S should reasonably have been aware that his home had previously been damaged by subsidence. And he should have responded 'no' to the statement above.

Intact has provided information from its underwriting team that shows it would not provide cover at all when a property had previously been damaged by subsidence. This information is considered commercially sensitive so I can't share it in full. But it means that Mr S's misrepresentation is a qualifying one.

Under the CIDRA rules Intact must confirm whether it believes Mr S's misrepresentation was careless, reckless, or deliberate. In its email to Mr S dated 18 September 2025 Intact told him that it's underwriters had decided to return his premiums. The business hasn't specifically confirmed how it viewed Mr S's misrepresentation. But for it to return the premiums under CIDRA this means it considered the misrepresentation to be careless. I don't think this was unreasonable. Mr S held the view that he didn't need to declare the subsidence damage as underpinning wasn't required. This is wasn't what he was asked and I'm satisfied he made a misrepresentation. But in the circumstances I consider Intact has acted reasonably when categorising Mr S's misrepresentation as careless.

I've thought about Mr S's comments that Intact hasn't shown the cracking from 2016 was material to the loss he claimed for. But it doesn't need to. The CIDRA rules apply here. Intact has shown that Mr S made a careless, qualifying misrepresentation. This means it can decline his claim and avoid his policy, with a refund of his premiums. It needn't show the cracking was material to the roof damage.

Having considered all of this I'm satisfied that Intact acted fairly, under the CIDRA rules, and in line with its underwriting criteria when taking the action it did. So I can't reasonably ask it to do anymore.

My final decision

My final decision is that I do not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr S and Mrs T to accept or reject my decision before 25 May 2026.

Mike Waldron
Ombudsman